

"no successful effort to bring the guilty to punishment or afford protection or redress,"⁶⁰ or in which the "State courts . . . [are] unable to enforce the criminal laws . . . or to suppress the disorders existing,"⁶¹ or in which, in a State's "judicial tribunals one class is unable to secure that enforcement of their rights and punishment for their infraction which is accorded to another,"⁶² or "of . . . hundreds of outrages . . . not one [is] punished,"⁶³ or "the courts of the . . . States fail and refuse to do their duty in the punishment of offenders against the law,"⁶⁴ or in which a "class of officers charged under the laws with their administration permanently and as a rule refuse to extend [their] protection."⁶⁵ These statements indicate that Congress—made keenly aware by the post-bellum conditions in the South that States through their authorities could sanction offenses against the individual by settled practice which established state law as truly as written codes—designed § 1979 to reach, as well, official conduct which, because engaged in "permanently and as a rule," or "systematically,"⁶⁶ came through acceptance by law-administering officers to constitute "custom, or usage" having the cast of law. See *Nashville, C. & St. L. R. Co. v. Browning*, 310 U. S. 362, 369. They do not indicate an attempt to reach, nor does the statute by its terms include, instances of acts in defiance of state law and which no settled state practice, no systematic pattern of official action or inaction, no "custom, or usage, of any State," insulates from effective and adequate reparation by the State's authorities.

⁶⁰ *Id.*, at 428.

⁶¹ *Id.*, at 653.

⁶² *Id.*, at App. 315.

⁶³ *Id.*, at 505.

⁶⁴ *Id.*, at App. 179.

⁶⁵ *Id.*, at 334.

⁶⁶ See note 46, *supra*.